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SEP 15 2025
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DISTRICT OF ARIZONA
BY _____ DEPUTY

UNITED STATES DISTRICT COURT

DISTRICT OF ARIZONA

KEVIN D. TURNAGE,

Plaintiff,

Case No.: CV25-03367-PHX-CDB

v.

ROBERT F. KENNEDY, JR., Secretary,

U.S. DEPARTMENT OF HEALTH AND HUMAN SERVICES,

INDIAN HEALTH SERVICE,

and Individual Federal Officials in Their Official Capacities,

Defendants.

PLAINTIFF'S MOTION IN LIMINE TO EXCLUDE THE STATEMENT OF DR. YAMINI GOSWAMI

1. Plaintiff Kevin D. Turnage, proceeding pro se, respectfully moves this Court for an order in limine precluding Defendant, its counsel, and its witnesses from introducing, referencing, or otherwise eliciting testimony regarding the written statement of Dr. Yamini Goswami dated June 22, 2023. This statement is inadmissible under Federal Rules of Evidence 401, 402, 403, 404(b), 801, and 802 because it is irrelevant, unfairly prejudicial, constitutes improper character evidence, and is hearsay.

2. BACKGROUND

3. The central issue in this litigation is whether Plaintiff made an alleged threat against another employee. In the course of discovery, Defendant has produced a written statement from Dr. Yamini Goswami. This statement, dated June 22, 2023, does not concern the alleged threat. Instead, it details an entirely separate incident where Dr. Goswami claims to have overheard Plaintiff in a clinic hallway discussing the details of his administrative case against the Agency.

4. Defendant will likely seek to introduce this statement at trial to portray Plaintiff in a negative light. However, for the reasons set forth below, the statement is legally inadmissible and must be excluded.

5. THE STATEMENT IS PART OF THE ADMINISTRATIVE RECORD BUT REMAINS INADMISSIBLE Hearsay

a. The statement at issue was incorporated into the Record of Investigation (ROI), the Final Agency Decision (FAD), and the Record of Oral Interview (ROOI) submitted to the EEOC. Nonetheless, it remains an out-of-court statement offered to prove the truth of the matter asserted. Under Federal Rule of Evidence 801, such a statement is hearsay, and no applicable hearsay exception—such as a business-record exception—has been invoked.

b. Even though the statement appears in the agency's administrative record, that record is not automatically admissible in this civil action. To admit it under Rule 803(6) as a business record, Plaintiff must lay a proper foundation showing that the record was kept in the regular course of business, that the person making the entry had knowledge of the information, and that

the record was made at or near the time of the event. Plaintiff has not offered such foundation, and therefore the record cannot be admitted.

c. The EEOC's reliance on the ROI/FAD/ROOI to reach its own administrative decision does not waive the hearsay rule in a federal-court proceeding. Courts consistently hold that agency findings are not admissible as substantive evidence absent an applicable exception (see *U.S. Equal Employment Opportunity Comm'n v. Rent-A-Center*, 303 F. Supp. 3d 739 (D. Ariz. 2018)).

6. LEGAL STANDARD

The purpose of a motion in limine is "to aid the trial process by enabling the Court to rule in advance of trial on the relevance of certain forecasted evidence, as to issues that are definitely set for trial, without lengthy argument at, or interruption of, the trial." United States v. M.C. Re-Emp. Grp., 38 F. Supp. 3d 1109, 1118 (D. Nev. 2014). Such motions are a crucial tool to prevent the jury from being exposed to "irrelevant, inadmissible, or prejudicial" evidence. Luce v. United States, 469 U.S. 38, 41 n.4 (1984).

7. ARGUMENT

I. The Statement Is Irrelevant and Inadmissible Under Rules 401 and 402

Under the Federal Rules of Evidence, evidence must be relevant to be admissible. Fed. R. Evid. 402. Evidence is relevant if "it has any tendency to make a fact more or less probable than it would be without the evidence" and "the fact is of consequence in determining the action." Fed. R. Evid. 401. Dr. Goswami's statement describes Plaintiff discussing his case against the Agency and his contact with a U.S. Senator's office. This conversation has no logical

connection to whether Plaintiff threatened a different employee at a different time and place. The fact that Plaintiff spoke about his case in a hallway does not make it more or less probable that he made a threat. The statement is entirely collateral to the core disputed facts of this case. Because the statement has no probative value concerning any fact of consequence, it is irrelevant and must be excluded under Rule 402.

II. The Statement's Probative Value Is Substantially Outweighed by the Danger of Unfair Prejudice Under Rule 403

Even if the Court were to find a remote, minimal relevance in Dr. Goswami's statement, it must still be excluded under Rule 403. This rule requires the exclusion of relevant evidence if its probative value is "substantially outweighed by a danger of... unfair prejudice, confusing the issues, misleading the jury, undue delay, wasting time, or needlessly presenting cumulative evidence." Fed. R. Evid. 403.

The "unfair prejudice" here is manifest. The sole purpose of introducing this statement is to paint Plaintiff as a disgruntled employee, a "troublemaker," or someone who discusses grievances inappropriately. This is an attack on his character. It invites the jury to render a verdict based on its disapproval of Plaintiff's perceived attitude rather than on the evidence related to the actual claim. Introducing this collateral incident would confuse the issues, distract the jury from the central question of the alleged threat, and create a "mini-trial" over a hallway conversation. Any negligible probative value is far outweighed by the high risk of unfair prejudice, warranting exclusion.

III. The Statement Is Inadmissible Character Evidence Under Rule 404(b)

Federal Rule of Evidence 404(b)(1) expressly forbids the use of evidence of a "crime, wrong, or other act… to prove a person's character in order to show that on a particular occasion the person acted in accordance with the character." This is precisely what Defendant seeks to do with Dr. Goswami's statement.

The Agency's implicit argument is that the "other act" of Plaintiff discussing his case in a hallway demonstrates a character trait of unprofessionalism or impropriety. From this, the Agency wants the jury to infer that because Plaintiff acted "unprofessionally" on that occasion, he has a propensity for such behavior and therefore likely acted in conformity with that character by making the alleged threat. This is the classic "propensity" argument that Rule 404(b) was designed to prevent. The statement is not being offered for a non-propensity purpose, such as proving motive, opportunity, or intent; its only purpose is to prove character to show propensity. It is therefore inadmissible.

IV. The Statement Is Inadmissible Hearsay Under Rules 801 and 802

Hearsay is an out-of-court statement offered in evidence to prove the truth of the matter asserted. Fed. R. Evid. 801(c). Hearsay is inadmissible unless a federal statute, the Federal Rules of Evidence, or other rules prescribed by the Supreme Court provide otherwise. Fed. R. Evid. 802.

Dr. Goswami's written statement is a classic example of hearsay. It is (1) a statement made out of court (it is a written document), and (2) it will be offered to prove the truth of the matter asserted—namely, that Plaintiff actually engaged in the conversation as described by Dr. Goswami. Defendant is offering the statement to prove that Plaintiff said what Dr. Goswami claims he said. No recognized hearsay exception applies to this statement. Therefore, the statement itself is inadmissible as hearsay.

V. The Statement Is Part of the Administrative Record but Still Hearsay

The statement at issue was incorporated into the Record of Investigation (ROI), the Final Agency Decision (FAD), and the Record of Oral Interview (ROOI) submitted to the EEOC. Nevertheless, it remains an out-of-court statement offered to prove the truth of the matter asserted. Under Federal Rule of Evidence 801, such a statement is hearsay, and no applicable hearsay exception—such as a business-record exception—has been invoked. Even though the statement appears in the agency's administrative record, that record is not automatically admissible in this civil action. To admit it under Rule 803(6) as a business record, Plaintiff must lay a proper foundation showing that the record was kept in the regular course of business, that the person making the entry had knowledge of the information, and that the record was made at or near the time of the event. Plaintiff has not offered such foundation, and therefore the record cannot be admitted. The EEOC's reliance on the ROI/FAD/ROOI to reach its own administrative decision does not waive the hearsay rule in a federal-court proceeding.

VI. Accordingly, the Statement Should Be Excluded

Because the statement is irrelevant, substantially more prejudicial than probative, constitutes improper character evidence, and is inadmissible hearsay, it must be excluded under Rules 402, 403, 404(b), and 801/802. Plaintiff respectfully requests that the Court grant this Motion in Limine and issue an order precluding Defendant, its counsel, and witnesses from making any reference to this statement during the trial of this matter.

8. CONCLUSION

For the foregoing reasons, the statement of Dr. Yamini Goswami dated June 22, 2023, is irrelevant, substantially more prejudicial than probative, constitutes improper character evidence, and is inadmiss.

Dated September 15, 2025

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CERTIFICATE OF SERVICE

I hereby certify that on **September 15, 2025** a true and correct copy of the foregoing **Plaintiff's Motion in Limine to Exclude the Statement of Dr. Yamini Goswami** was served on all parties as follows:

- **By Certified Mail, Return Receipt Requested**, to the following counsel of record:
  - **Defendant:** Robert F. Kennedy Jr., Secretary, U.S. Department of Health and Human Services; Indian Health Service

A copy

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